

Ram Kishor v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 2 January 2023 · Writ-C No. 37390 of 2022 · Writ-C No. 37390 of 2022 · **Writ disposed of; petitioner relegated to clause 6.8.**

HEADNOTE

A writ challenging a recovery citation in a theft and unauthorized-use matter was not entertained. The Division Bench held that clause 6.8 of the Uttar Pradesh Electricity Supply Code, 2005 is an efficacious alternative remedy, left the petitioner to that recourse, and hoped the competent authority would proceed strictly in accordance with law.

FACTUAL SUMMARY

Ram Kishor filed a writ petition in the Allahabad High Court challenging a recovery citation dated 20 August 2022 issued by respondent no. 3. The State and counsel for the distribution licensee appeared. Counsel for the licensee raised a preliminary objection that the Uttar Pradesh Electricity Supply Code, 2005 is a complete code and that, the dispute relating to theft and unauthorized use of electricity, the petitioner had an efficacious remedy of appeal under clause 6.8 of the Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

alternative remedy for theft/UUE recovery citation

HOLDING

A writ against a recovery citation arising from theft and unauthorized use of electricity will not be entertained where clause 6.8 of the Uttar Pradesh Electricity Supply Code, 2005 furnishes an efficacious remedy; the consumer is left to that recourse and the competent authority is to proceed strictly in accordance with law. ¶ 1

FLAG Court described clause 6.8 as an 'appeal' for a matter of 'theft and unauthorized use' without identifying a sub-clause.

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against a theft/UUE recovery citation was not entertained because clause 6.8 of the Supply Code, 2005 was held to be an efficacious appeal/recourse. ¶ 1

assessment-6.8-alternate-remedy Challenge to the 20.8.2022 recovery citation was disposed of on the clause 6.8 alternative-remedy objection without examining the assessment on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 20.8.2022

Merits of the theft/UUE recovery were not examined; the writ was disposed of on the alternative-remedy objection. ¶ 1